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Case Number: 26STCV09075 Hearing Date: June 30, 2026 Dept: 307

#18 TENTATIVE RULING 9:15 a.m., Tuesday, June 30, 2026

PHILIP P.

DELUCA v. ROBERT BISHOP, et al. [26STCV09075]

[A] DEFENDANTS

JEROME A. CLAY, ESQ. AND LAW OFFICE OF JEROME A. CLAY'S SPECIAL
MOTION TO STRIKE THE COMPLAINT PURSUANT TO CODE OF CIVIL PROCEDURE SECTION
425.16

[B] DEFENDANTS

ROBERT BISHOP, JEROME A. CLAY, ESQ., AND LAW OFFICE OF JEROME A. CLAY'S DEMURRER
TO THE COMPLAINT

[C] CROSS-DEFENDANT

PHILIP P. DELUCA'S DEMURRER AND MOTION TO STRIKE AS TO THE CROSS-COMPLAINT

MEET AND

CONFER: [A] N/A; [B] DEFECTIVE: Defendants do not submit a meet and confer
declaration in connection with this motion; [C] DEFECTIVE: DeLuca does not
indicate that he attempted to meet and confer in-person, telephonically, or by
video conference to comply with the statutory requirements, and instead only
attempted to meet and confer in writing. (DeLuca Decl., ¶¶ 6-8.)

BACKGROUND:

Complaint seek resolution of attorney-client fee dispute; Cross-Complaint
alleges legal malpractice

TIMELINE:

12/13/2019: Defendant Robert Bishop III (“Bishop”) retains Plaintiff Philip P. DeLuca, Esq. DBA Law Offices of Philip P. DeLuca (“DeLuca”) for legal representation in the underlying personal injury matter of Bishop v. Penatover, Case No. 20STCV47832 (the “Underlying Action”). Bishop and DeLuca execute a written contingency fee agreement providing DeLuca with a contractual lien against any recovery in the Underlying Action.

7/27/2025: DeLuca voluntarily withdraws from representing Bishop in the Underlying Action. Thereafter, Bishop retains the legal services of Defendants Jerome A. Clay, Esq. and the Law Office of Jerome A. Clay (collectively, “Clay” or the “Clay Defendants”).

7/29/2025: DeLuca serves a written Notice of Attorney’s Lien upon Bishop and Clay against any settlement proceeds in the Underlying Action.

11/25/2025: Clay and Bishop allegedly settle the Underlying Action for a sum of \$275,000.00. DeLuca is not notified of the settlement until he is served with a Motion to Strike and/or Expunge the Contractual Lien for Attorney Fees in the Underlying Action, filed by Clay.

3/5/2026: The Court denies the Motion to Strike/Expunge the Contractual Lien based on lack of jurisdiction.

3/20/2026: DeLuca files the Complaint in this action against Bishop and the Clay Defendants, alleging causes of action for:

1. Breach of Contract (Fee Agreement)
2. Quantum Meruit
3. Declaratory Relief (Validity of Attorney Lien)
4. Breach of Fiduciary Duty
5. Intentional Interference with

Contractual Relations

6. Attempted Conversion

7. Constructive Trust

8. Civil Conspiracy

9. Accounting

5/7/2026: Bishop files a Cross-Complaint
against DeLuca, alleging causes of action for:

1. Professional Negligence (Legal
Malpractice)

2. Breach of Contract

3. Breach of Fiduciary Duty

4. Fraudulent Concealment

5. Declaratory Relief

5/7/2026: The Clay Defendants file an Anti-SLAPP
Motion, which is followed by DeLuca's Opposition (6/9/2026) and Clay's Reply (6/12/2026).
On 6/22/2026, the Court issues a tentative ruling granting the motion, in part,
with respect to the fourth, fifth, sixth, and eighth causes of action and
denying the motion, in part, with respect to the third, seventh, and ninth
causes of action. The Court then continues the hearing until 6/30/2026 and
permits Plaintiff to file further briefing regarding fiduciary duties owed by
successor attorneys by 6/25/2026 and permits the Clay Defendants to file a
response by 6/26/2026. The supplemental briefs are filed accordingly.

5/13/2026: Bishop and the Clay Defendants file
this Demurrer to the Complaint, which is followed by DeLuca's Opposition
(5/21/2026) and Bishop and Clay's Reply (6/5/2026).

6/4/2026: DeLuca files this Demurrer to the
Cross-Complaint with a Motion to Strike, which is followed by Bishop and Clay's

Opposition (6/15/2026). As of 6/26/2026, no Reply has been filed.

TENTATIVE

RULING: [A] DEFENDANTS JEROME A. CLAY, ESQ. AND LAW OFFICE OF JEROME A. CLAY'S SPECIAL MOTION TO STRIKE THE COMPLAINT PURSUANT TO CODE OF CIVIL PROCEDURE SECTION 425.16 is GRANTED in part and DENIED in part.

[B] DEFENDANTS

ROBERT BISHOP, JEROME A. CLAY, ESQ., AND LAW OFFICE OF JEROME A. CLAY'S DEMURRER TO THE COMPLAINT is SUSTAINED with LEAVE TO AMEND in part, SUSTAINED without leave to amend in part, and MOOT in part.

[C]

CROSS-DEFENDANT PHILIP P. DELUCA'S DEMURRER TO THE CROSS-COMPLAINT is OVERRULED in part, SUSTAINED without leave to amend in part, and SUSTAINED with LEAVE TO AMEND in part. CROSS-DEFENDANT PHILIP P. DELUCA'S MOTION TO STRIKE is MOOT.

I. SPECIAL MOTION TO STRIKE

After

reviewing the parties' supplemental briefing on the issue of fiduciary duty, the Court finds that the original tentative ruling on Clay's Special Motion to Strike is correct. The previous tentative ruling on this motion is incorporated herein by reference to the June 22, 2026 Minute Order.

II. DEMURRER TO THE COMPLAINT

Bishop

and the Clay Defendants demur to each cause of action asserted in the Complaint pursuant to Code of Civil Procedure section 430.10, subdivision (e).

A. 1st and 2nd Causes

of Action: Breach of Contract (Fee Agreement) and Quantum Meruit — SUSTAINED with LEAVE TO AMEND

DeLuca's claims

against Bishop for breach of contract and quantum meruit are insufficiently pled. In his contract claim, DeLuca alleges that he entered into a written contingency fee agreement with Bishop in December 2019. (Compl., ¶ 36, Exh. 1.) Under this agreement, DeLuca agreed to provide legal services for Bishop in the Underlying Action. (Ibid.)

DeLuca alleges that Bishop breached the fee agreement by refusing to: (1) pay attorney fees to DeLuca, (2) advance or reimburse litigation costs upon settling the Underlying Action, (3) honor DeLuca's attorney fee lien, (4) follow legal advice related to mitigating his damages, (5) receiving recommended medical treatment by his physicians, (6) follow legal advice to hire counsel to resolve child support liens, and by (7) interfering with the prosecution of the Underlying Action and engaging in abusive communications such that DeLuca's representation of Bishop became untenable. (Id. ¶¶ 38-44.) To summarize, Bishop allegedly breached the fee agreement by failing to pay DeLuca after reaching a settlement in the Underlying Action and by failing to follow DeLuca's legal advice. DeLuca's quantum meruit claim is based on the same refusal to pay for DeLuca's legal services and the withholding of the settlement proceeds. (Id. ¶¶ 48-50.)

To the extent that DeLuca is arguing that Bishop failed to follow his legal advice, such allegations do not amount to a breach of an attorney-client fee agreement as a matter of law. "A lawyer cannot properly compel a client to take his or her advice; a lawyer may strongly advise action by a client, action highly beneficial to the client or others, action clearly indicated by known facts, but there is no duty on the part of the client to follow the lawyer's lead—that is not the nature of the relationship, assuming that the client is legally capable of acting on his own behalf." (Purdy v. Pacific Automobile Ins. Co. (1984) 157 Cal.App.3d 59, 77–78.) Bishop was within his right to disagree with DeLuca's litigation strategy and was not obligated to accept DeLuca's advice. DeLuca does not point to any provision of the fee agreement or any legal authority to suggest that Bishop owed a duty to DeLuca to mitigate damages by following legal and medical advice.

Even to the extent that DeLuca alleges that Bishop engaged in "abusive conduct," such allegations are vague and fail to identify a cognizable "breach" of any particular contract provision. If DeLuca's theory is that Bishop breached the fee agreement by simply engaging in conduct that led DeLuca to voluntarily withdraw (i.e. constructive discharge), such conduct does not amount to a breach of contract as a matter of law. (Estate of Falco (1987) 188 Cal.App.3d 1004, 1012–1013 (Falco) ["A client's right and power to discharge his or her attorney at any time, with or without cause, is absolute. [...] Such a discharge does not constitute a breach of contract for the reason that it is a basic term of the contract, implied by law."].)

The

final question before the Court is whether DeLuca has a right to recover contingent attorney fees after his permissive withdrawal from representing Bishop. "The rules on recovery after a separation between client and attorney in a contingency fee case depend on exactly who wanted out of the relationship and why." (Rus, Miliband & Smith v. Conkle & Olesten (2003) 113 Cal.App.4th 656, 671 (Rus).) "If the client fires the attorney, the law is clear that the attorney may assert a quantum meruit claim against any recovery." (Ibid.) "The subject is more complex when the attorney leaves without having been discharged by the client." (Id. at p. 672.) "Any claim to a subsequent recovery depends on whether the attorney had 'justifiable cause so as to permit a recovery of compensation.'" (Id., quoting Falco, supra, 188 Cal.App.3d at p. 1015.) "[A]s the law stands, the justifiability of the reason for withdrawal is dependent on the particular facts of the case." (Rus, supra, 113 Cal.App.4th at p. 672.) "The test, as stated in Falco, is whether the cause for withdrawal is sufficiently justifiable so as to permit recovery by the withdrawn attorney." (Id. at pp. 672-673.)

"There

are times, of course, when professional ethics require a withdrawal. In such cases, the inequity inherent in the inconsistent position is offset by the countervailing ethical value affirmed by the withdrawal—there is no injustice in allowing recovery by the attorney later." (Rus, supra, 113 Cal.App.4th at pp. 673-674.) "Falco proffered a set of five requirements attorneys must meet if they claim an ethical compulsion of withdrawal. The most significant of the five are the first two, namely that (1) the withdrawal be truly mandatory under the professional rules and (2) the 'overwhelming and primary' motivation be the desire to adhere to the professional ethical rules, as distinct from some private ulterior motive." (Id. at p. 674.) By contrast, "the withdrawal for breakdown in communications [is] clearly not mandatory under State Bar rules." (Id. at p. 674.) "Falco devoted some considerable discussion to whether a client's alleged failure to cooperate (in that case, a ... preference for a trial over what the attorney believed to be a good settlement), and the answer was clearly no." (Ibid.) "Despite the fact that there was 'mutual animosity' between lawyer and client and ... a successful withdrawal motion 'granted on the basis that the attorney-client relationship had completely broken down,' the court was clear the withdrawal was not so justified as to merit fees." (Ibid.; see Falco, supra, 188 Cal.App.3d at p. 1014 ["While a personality clash between the parties may

provide good reason for allowing the attorney to withdraw, it is not necessarily a justifiable reason for purposes of awarding fees.”.) Further, while “[t]he Falco court was ... willing to entertain the possibility that some permissive withdrawals might qualify for a quantum meruit claim later,” the court determined that the “particular permissive withdrawal in Falco did not qualify” for such recovery. (Rus, supra, 113 Cal.App.4th at p. 675.)

Here, whether or not the Underlying Action culminated in a binding settlement agreement, the issue with DeLuca's fee recovery theories is that he cannot not overcome the Falco test. Stated differently, DeLuca has not demonstrated that his withdrawal from representation was “sufficiently justifiable” such that he should be entitled to fees. Based on the facts alleged in the Complaint, the conflict between DeLuca and Bishop which resulted in DeLuca's withdrawal amounted to nothing more than “animosity” between the parties, as opposed to circumstances where, for example, professional ethics would require counsel to withdraw. (Compl., ¶¶ 20-21, 44.) By withdrawing from representing Bishop due to the mere breakdown in attorney-client communications, DeLuca failed to preserve his right to recover contingent attorney fees, whether based in contract or equity. DeLuca fails to offer any legal authority supporting a contrary conclusion.

Therefore, Bishop's demurrer to the first and second causes of action in the Complaint is SUSTAINED with LEAVE TO AMEND. Although the Court is skeptical that DeLuca can amend his pleading to overcome the Falco requirements for fee recovery, the Court will permit DeLuca the opportunity to amend his complaint in light of the liberal policy favoring amendment of pleadings.

B. 3rd Cause of Action:

Declaratory Relief (Validity of Attorney Lien) — SUSTAINED with LEAVE TO AMEND

DeLuca's third cause of action for declaratory relief against Bishop and the Clay Defendants is insufficiently pled for the same reasons described above. DeLuca seeks a judicial determination regarding the validity and enforceability of his attorney fee lien against the settlement proceeds in the Underlying Action. (Compl., ¶¶ 52-54.)

“California

courts have long recognized liens in favor of an attorney on the proceeds of a prospective judgment awarded to the attorney's client.” (Jacobs v. Papez (2026) 119 Cal.App.5th 123, 128 (Jacobs).) “[T]he lien survives the discharge of the attorney, and the attorney, although no longer entitled to the fees contracted for, remains entitled to recover from the judgment the reasonable value of services actually performed.” (Ibid.) “An attorney's lien is only enforceable after the attorney adjudicates the validity and amount of the lien.” (Ibid.) “The longstanding rule is that, ‘[a]fter the client obtains a judgment, the attorney must bring a separate, independent action against the client to establish the existence of the lien, to determine the amount of the lien, and to enforce it.’” (Id. at p. 129.)

A former

attorney's action to enforce his attorney fee lien does not have to be a suit for breach of contract against the client. (Jacobs, supra, 119 Cal.App.5th at p. 130.) “Instead, ... it would be ‘appropriate’ for the attorney to institute a declaratory relief action against the judgment lien holder under Code of Civil Procedure section 1060 in which the attorney might seek a declaration of his rights with respect to the judgment lien holder or with respect to the proceeds of the judgment.” (Ibid.) “In this sort of action, the attorney and competing lien holder could ‘litigate the validity, amount, and priority of [the attorney]’s lien,’ and the attorney could ‘enforce that lien in the declaratory relief action.’” (Ibid.)

Bishop

and the Clay Defendants argue that DeLuca's claim for declaratory relief claim is merely duplicative of his breach of contract and quantum meruit theories. (Mot., at p. 13.) The Court disagrees. Declaratory relief is a procedural mechanism for determining and enforcing the predecessor attorney's interest in Bishop's settlement proceeds, whereas the breach of contract and quantum meruit theories seek to impose monetary liability against Bishop. Further, while the lien action pertains to competing claims on the settlement funds (including the successor attorney), DeLuca's quantum meruit theory pertains to the value of services rendered to the client alone. Although DeLuca has not yet stated facts demonstrating that he is entitled to recover fees from the settlement in the Underlying Action, it is appropriate to include his declaratory relief claim as a separate claim for relief in an amended pleading.

The Clay

Defendants also argue that a discharged attorney cannot “sue to enforce his fee lien against a successor attorney holding settlement funds unless he first establishe[s] the validity and value of the lien in an action against the client.” (Aresh v. Marin-Morales (2023) 92 Cal.App.5th 296, 301 (Aresh), citing Mojtahedi v. Vargas (2014) 228 Cal.App.4th 974 (Mojtahedi).) Clay contends that the appropriate course of action is to first determine the lien’s validity against the client, Bishop, before seeking declaratory relief against Clay. Yet, the quoted language in the Aresh decision merely summarizes a party’s argument, rather than the ruling of the trial court. The Aresh court specifically distinguished the case from Mojtahedi because the Aresh plaintiff “did include his former clients in his lawsuit, thus giving them the opportunity to be heard.” (Aresh, supra, 92 Cal.App.5th at p. 301, fn. 3.) Unlike in Mojtahedi, the Aresh court was evaluating “the issue of simultaneous litigation” against former clients and successor attorneys. (Ibid.) Even so, the Aresh court never made a formal ruling on the issue because the plaintiff requested the dismissal of all defendants (except for the former client) before a final ruling could be made. More recently, the Jacobs court has confirmed that the predecessor attorney can proceed simultaneously against the successor attorney, so long as the former client is also joined in the same action. (Jacobs, supra, 119 Cal.App.5th at p. 131 [“the issue of lien priority is precisely what must be determined as part of an adjudication of competing lien claims—it does not dictate the sequence of adjudication before the fact.”].) Accordingly, if DeLuca is able to amend his fee recovery theories, Jacobs permits him to include Clay as a defendant in his claim for declaratory relief.

C.

4th

Cause of Action: Breach of Fiduciary Duty — MOOT

Based on

the Court’s ruling on the Clay Defendants’ Special Motion to Strike, this cause of action against the Clay Defendants is stricken pursuant to Code of Civil Procedure section 425.16. Accordingly, the Court considers the demurrer to this cause of action to be moot.

D. 5th Cause of Action:

Intentional Interference with Contractual Relations — MOOT

Based on

the Court's ruling on the Clay Defendants' Special Motion to Strike, this cause of action against the Clay Defendants is stricken pursuant to Code of Civil Procedure section 425.16. Accordingly, the Court considers the demurrer to this cause of action to be moot.

E. 6th Cause of Action: Conversion/Attempted
Conversion — SUSTAINED without leave to amend

DeLuca's
sixth cause of action for conversion and/or attempted conversion against Bishop and the Clay Defendants is insufficiently pled.

First, based
on the Court's ruling on the Clay Defendants' Special Motion to Strike, this cause of action against the Clay Defendants is stricken pursuant to Code of Civil Procedure section 425.16. Accordingly, the Court considers the demurrer to this cause of action to be moot with respect to the Clay Defendants.

Second, with
respect to Bishop, DeLuca fails to state a cognizable claim for conversion of the settlement proceeds. To
plead conversion, plaintiffs must allege: (1) "plaintiff's ownership or right to possession of property," (2) "defendant's wrongful act toward or disposition of the property, interfering with plaintiff's possession," and (3) damage to plaintiff. [Citation.]" (PCO, Inc. v. Christensen, Miller, Fink, Jacobs, Glaser, Weil & Shapiro, LLP (2007) 150 Cal.App.4th 384, 395 (PCO, Inc.)) "Money cannot be the subject of a cause of action for conversion unless there is a specific, identifiable sum involved, such as where an agent accepts a sum of money to be paid to another and fails to make the payment. [Citation.]" (Ibid.)

Here, DeLuca's conversion theory is
expressly premised on the assertion that he is entitled to a portion of the settlement proceeds in the Underlying Action due to his contractual attorney fee lien. (Compl., ¶¶
68-69.) Nevertheless, as demonstrated by DeLuca's quantum meruit and declaratory relief claims, DeLuca's entitlement to a portion of the settlement proceeds and the amount to which he is entitled have not yet been adjudicated. As a result, DeLuca cannot demonstrate an identifiable sum of money over which he has a present right of possession. Even further, DeLuca has not alleged

facts demonstrating that Bishop has actually received the payment of his settlement sum in the Underlying Action, if any, such that DeLuca cannot demonstrate that Bishop has wrongfully exercised control over funds that belong to DeLuca. (AmerUS Life Ins. Co. v. Bank of America, N.A. (2006) 143 Cal.App.4th 631, 640 [“There can be no conversion action until the check is delivered to the payee because until delivery, the payee is not a holder and has no property interest in the check.”].) Accordingly, DeLuca’s conversion claim is both premature and defective as a matter of law.

F. 7th Cause of Action:

Constructive Trust — SUSTAINED without leave to amend

DeLuca’s

seventh cause of action for a constructive trust against Bishop and the Clay Defendants is insufficiently pled. A constructive trust is not a cause of action, but a remedy. (Stansfield

v. Starkey (1990) 220 Cal.App.3d 59, 75 (Stansfield);

see Monastra v. Konica Business

Machines, U.S.A., Inc.

(1996) 43 Cal.App.4th 1628, 1645 [“A constructive trust plainly is a proper remedy” for a fraudulent transfer claim.]; see Habitat Trust for

Wildlife, Inc. v. City of Rancho Cucamonga (2009) 175 Cal.App.4th

1306, 1332 [“constructive trust is an equitable remedy....”]; PCO, Inc., supra, 150

Cal.App.4th at p. 398 [constructive trust is a

remedy]; see Glue-Fold, Inc. v. Slautterback Corp.

(2000) 82 Cal.App.4th 1018, 1023 [same]; see Olson v. Toy (1996)

46 Cal.App.4th 818, 823 [same].)

Here,

Bishop and the Clay Defendants argue that DeLuca’s constructive trust claim is entirely derivative of his conversion theory, which itself is derivative of his fee recovery theories, and should not be pled as a separate basis for liability because it is merely an equitable remedy. Indeed, DeLuca is seeking to impose a constructive trust over the settlement funds “subject to [DeLuca’s] lien.”

(Compl., ¶ 71.) As discussed above,

DeLuca has not yet demonstrated his possessory right to any identifiable sum of the settlement proceeds. Thus, the Court agrees that the seventh cause of action is premature and unnecessarily duplicative of lien dispute.

G. 8th Cause of Action:

Civil Conspiracy — SUSTAINED without leave to amend

DeLuca's

eighth cause of action for civil conspiracy against Bishop and the Clay Defendants is insufficiently pled.

First, based

on the Court's ruling on the Clay Defendants' Special Motion to Strike, this cause of action against the Clay Defendants is stricken pursuant to Code of Civil Procedure section 425.16. Accordingly, the Court considers the demurrer to this cause of action to be moot with respect to the Clay Defendants.

Second, with

respect to Bishop, the Court finds DeLuca's civil conspiracy claim is barred by Civil Code section 1714.10. (Mot., at p. 18.) This statute "requires a litigant to obtain court approval to file a complaint containing conspiracy allegations between an attorney and his or her client." (MMM Holdings, Inc. v. Reich (2018) 21 Cal.App.5th 167, 186.) "The purpose of the statute is to 'discourage frivolous claims that an attorney conspired with his or her client to harm another. Therefore, rather than requiring the attorney to defeat the claim by showing it is legally meritless, the plaintiff must make a prima facie showing before being allowed to assert the claim.'" (Ibid.) Here, DeLuca is alleging that Bishop conspired with the Clay Defendants to prevent DeLuca from receiving payment of his attorney fees from the settlement in the Underlying Action by settling the case in secret, improperly challenging the lien, and refusing to pay DeLuca. (Compl., ¶¶ 74-77.)

DeLuca does not allege compliance with the pre-filing requirement of Civil Code section 1714.10. While DeLuca argues in his opposition that section 1714.10 does not bar a conspiracy claim where the attorney engages in conduct exceeding ordinary representation activities or the claim otherwise falls within an exception to the rule, DeLuca fails to present any factual argument demonstrating how these exceptions are applicable to the instant facts. (Opp., at p. 9.)

In any

event, as discussed above, DeLuca has not demonstrated that he is entitled to a possessory interest of a particular, identifiable sum from the alleged settlement funds or that Bishop actually received a payment from the settlement which he has intentionally withheld from DeLuca. A conspiracy claim cannot be

premised on the lawful withholding of settlement proceeds prior to the adjudication of a predecessor attorney's right to enforce his lien on such proceeds or a determination of the amount owed under the lien.

Therefore,

Bishop's demurrer to the eighth cause of action for civil conspiracy is SUSTAINED without leave to amend.

H. 9th Cause of Action:

Accounting — SUSTAINED without leave to amend

DeLuca's

ninth cause of action for an accounting from Bishop and the Clay Defendants is insufficiently pled. "A cause of action for an accounting requires a showing that a relationship exists between the plaintiff and defendant that requires an accounting, and that some balance is due the plaintiff that can only be ascertained by an accounting." (*Teselle*, v. McLoughlin, (2009) 173 Cal.App.4th 156, 179.)

Here,

DeLuca seeks an accounting to determine the "receipt, possession, distribution, and allocation of settlement proceeds obtained" in the Underlying Action.

(*Compl.*, ¶ 80.) DeLuca alleges that

the settlement proceeds are subject to his contractual attorney lien, but the precise amount of funds received, held, and distributed are unknown to DeLuca.

(*Id.* ¶¶ 83-84.) These allegations are insufficient to warrant an accounting from Bishop and the Clay Defendants. As DeLuca admits, his attorney-client relationship with Bishop ended in July 2025 when he permissively withdrew as counsel in the Underlying Action. (*Id.* ¶¶ 19-20.) Likewise, as this Court has already held in connection with its ruling on Clay's Special Motion to Strike, DeLuca has not adequately demonstrated that a fiduciary relationship exists between a successor attorney and his client's former attorney. (See *Mason v. Levy & Van Bourg* (1978) 77 Cal.App.3d 60, 66 ["It is fundamental to the attorney-client relationship that an attorney have an undivided loyalty to his clients... This loyalty should not be diluted by a duty owed to some other person, such as an earlier attorney."].) As DeLuca has not established the existence of a relationship between DeLuca and Defendants that requires an accounting, his ninth cause of action fails as a matter of law.

Even

further, like DeLuca's conversion claim, his accounting claim must fail because he cannot presently demonstrate that a balance is due to him. The adjudication of the enforceability of DeLuca's lien claim remains at issue, and thus, his accounting claim is premature. In any event, relief in the form of an accounting would merely duplicate the claims pertaining to DeLuca's right to recover fees in the Underlying Action.

Therefore,

Bishop and the Clay Defendants' demurrer to the ninth cause of action for an accounting is SUSTAINED without leave to amend.

III. DEMURRER TO THE CROSS-COMPLAINT

DeLuca

demurs to each cause of action in the Cross-Complaint pursuant to Code of Civil Procedure section 430.10, subdivisions (e) and/or (f).

A. 1st Cause of Action: Legal

Malpractice — OVERRULED

Bishop's

first cause of action is sufficiently pled. "In California a viable legal malpractice claim requires proof of '(1) the duty of the attorney to use such skill, prudence, and diligence as members of his or her profession commonly possess and exercise; (2) a breach of that duty; (3) a proximate causal connection between the breach and the resulting injury; and (4) actual loss or damage resulting from the attorney's negligence.' [Citation.]" (Landmark Screens, LLC v. Morgan, Lewis & Bockius, LLP (2010) 183 Cal.App.4th 238, 247–248.) Regarding causation of damages, a plaintiff must allege facts establishing that it is more likely than not that the plaintiff would have obtained a more favorable result but for the malpractice. (Jocer Enterprises, Inc. v. Price (2010) 183 Cal.App.4th 559, 572.)

Here,

Bishop alleges that he retained DeLuca as his attorney in the Underlying Action to litigate a personal injury dispute. (Cross-Compl., ¶ 6, Exh. 1.) Bishop alleges that DeLuca breached his duty of care to Bishop by failing to exercise reasonable diligence in investigating, developing, and litigating Bishop's

claims. (Id. ¶¶ 7, 26.) For example, DeLuca “did not retain or consult with any expert witnesses” and did not “arrange for expert medical examinations to evaluate the nature and extent of [Bishop’s] injuries” despite the need to substantially develop the medical facts for the record. (Id. ¶ 8.)

DeLuca also failed to “arrange or complete a Life Care Planner evaluation,” which was essential for accurately assessing Bishop’s future medical needs and the full scope of his damages. (Ibid.) Bishop also alleges that DeLuca undermined the prosecution of the Underlying Action by failing to take steps necessary to support the damages Bishop sought in his Code of Civil Procedure section 998 offer to compromise, leaving Bishop materially disadvantaged in his settlement negotiations. (Id. ¶¶ 9-10, Exh. 2.) Even further, Bishop alleges DeLuca failed to serve or respond to written discovery, failed to notice or pursue depositions of key fact witnesses, and did not produce income documentation or financial records relevant to Bishop’s damages. (Id. ¶ 12.) But-for these alleged breaches, Bishop asserts that he would have been in a materially better position to obtain necessary medical treatment, develop expert medical evidence, prepare for trial, and engage in informed settlement discussions. (Id. ¶ 29.)

DeLuca

argues that Bishop fails to plead his legal malpractice claim with sufficient factual specificity. (Mot., at p. 7.) The Court disagrees, finding Bishop clearly alleges prejudice to his litigation position that is causally connected to DeLuca’s failure to act diligently in his representation of Bishop. (FAC, ¶¶ 23, 29-30.) Bishop alleges specific omissions by DeLuca (see above) and links alleged DeLuca’s negligence to the “impairment of his litigation position,” due to the lost opportunity to timely and fully develop medical and expert evidence, a delay and disruption of necessary medical treatment, and increased costs and expenses incurred to remedy such deficiencies. At its core, Bishop’s theory is that DeLuca’s professional negligence caused the spoliation of Bishop’s medical evidence which prejudiced his ability to prove damages. At the pleading stage, Defendant is not required to quantify the specific amount of loss he suffered as a result of DeLuca’s conduct. Rather, Bishop need only plead ultimate facts to support a reasonable inference that DeLuca’s misconduct impaired Bishop’s recovery in the Underlying Action. Bishop has adequately alleged such facts.

B. 2nd Cause of Action:

Breach of Contract — SUSTAINED without leave to amend

Bishop's

breach of contract cause of action is insufficiently pled because it is duplicative of Bishop's legal malpractice claim. In California, "legal malpractice constitutes both a tort and a breach of contract." (GoTek Energy, Inc. v. SoCal IP Law Group, LLP (2016) 3 Cal.App.5th 1240, 1250 (GoTek).) "Legal malpractice consists of the failure of an attorney 'to use such skill, prudence, and diligence as lawyers of ordinary skill and capacity commonly possess and exercise in the performance of the tasks which they undertake.' [Citation.] ... When such failure proximately causes damage, it gives rise to an action in tort.... Since in the usual case, [as in the instant case,] the attorney undertakes to perform his duties pursuant to a contract with the client, the attorney's failure to exercise the requisite skill and care is also a breach of an express or implied term of that contract." (Ibid.) Contrary to Bishop's assertion, the GoTek decision does not support the position that an attorney's professional negligence "may support an independent contract claim" where the attorney undertakes representation pursuant to a retainer agreement. (Opp., at p. 12, italics added.) The underlying dispute in GoTek was not brought as a breach of contract action; instead, the GoTek court merely clarified that a single malpractice claim functions as both a tort and contract theory of recovery. (GoTek, supra, 3 Cal.App.5th at p. 1250.)

Here, Bishop's

breach of contract claim is based on the same inadequate performance of legal services that is cited as the basis for DeLuca's purported malpractice. (Cross-Compl., ¶ 34.) The alleged damage sustained in both claims is also identical. (Id. ¶ 35.) Bishop is not entitled to duplicate recovery for the same conduct simply because the underlying wrongdoing sounds in both tort and contract. Thus, the Court finds that Bishop's breach of contract action is superfluous of the legal malpractice claim. (See Lynch v. Warwick (2002) 95 Cal.App.4th 267, 270 (Lynch) [negligence and breach of contract claims seeking damages based on inadequate legal representation, while titled differently, both seek recovery for legal malpractice].)

C. 3rd Cause of Action:

Breach of Fiduciary Duty — SUSTAINED with LEAVE TO AMEND

Bishop's

breach of fiduciary duty claim against DeLuca is inadequately pled.

“The

elements of a cause of action for breach of fiduciary duty are: (1) existence of a fiduciary duty; (2) breach of the fiduciary duty; and (3) damage proximately caused by the breach.” (Stanley v. Richmond (1995) 35 Cal.App.4th 1070, 1086.) “[A] breach of fiduciary duty is a species of tort distinct from a cause of action for professional negligence.” (Ibid.) Thus, a plaintiff may state cognizable claims for both breach of fiduciary duty and professional negligence where both wrongs independently prejudice the plaintiff’s interests. (Id. at p. 1097.) By contrast, where a professional negligence claim and breach of fiduciary duty claim seek the same damages and are both based on the “negligent or inadequate representation” of a client, the claims are duplicative. (Lynch, supra, 95 Cal.App.4th at p. 270.) One key distinction is whether the breach of fiduciary duty is grounded in mere negligence as opposed to intentional conduct. (See Knutson v. Foster (2018) 25 Cal.App.5th 1075, 1091 (Knutson) [“Because legal malpractice involves negligent conduct on the part of an attorney ... causation for legal malpractice is analyzed differently than causation for the intentional torts of fraudulent concealment and intentional breach of fiduciary duty.”].)

Here,

like Bishop’s breach of contract claim, his breach of fiduciary duty claim is also based on Bishop’s lack of diligence in litigating the Underlying Action. (Cross-Compl., ¶¶ 34, 39.) Specifically, Bishop alleges DeLuca breached his fiduciary duties of loyalty, diligence, and candor by: (1) failing to competently manage and develop Bishop’s case in the Underlying Action, including obtaining expert evidence and conducting meaningful discovery, (2) failing to communicate and disclose information to Bishop regarding case strategy, medical evidence, and litigation status, (3) and failing to bring the action to trial within the five-year statutory period. (Id. ¶ 39.) Bishop alleges that this conduct caused the same damages underlying his legal malpractice claim. (Id. ¶ 41.) With respect to his fiduciary duty claim, Bishop makes no allegations that DeLuca’s conduct was intentional, and the omissions identified amount to nothing more than negligence. Because both claims stem from the negligent and inadequate representation of Bishop in the Underlying Action and both caused the same harm to Bishop, the Court finds these claims to be duplicative.

To

adequately state an independent claim for breach of fiduciary duty, Bishop must allege more facts indicating that DeLuca’s conduct was intentional (i.e.

amounting to more than mere negligence) and/or that the breach of his fiduciary duties were entirely independent from his inadequate representation of Bishop and caused separate harm. Therefore, DeLuca's demurrer to the third cause of action in the Cross-Complaint is SUSTAINED with LEAVE TO AMEND.

D. 4th Cause of Action:

Fraudulent Concealment — SUSTAINED with LEAVE TO AMEND

Bishop's

fraudulent concealment claim is insufficiently pled. "Fraud is an intentional tort distinct from malpractice." (Knutson, supra, 25 Cal.App.5th at p. 1091.) "[T]he elements of an action for fraud and deceit based on concealment are: (1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage.'

[Citation.]" (Ibid.) "California courts apply the same specificity standard

to evaluate

the factual underpinnings of a fraudulent concealment claim at the pleading stage, even though the focus of inquiry shifts to the unique elements of the claim." (Rattagan v. Uber Technologies, Inc. (2024)

17 Cal.5th 1, 43 (Rattagan).)

Here,

Bishop alleges that DeLuca concealed the following facts from Bishop: (1) the fact that disciplinary charges had been filed against DeLuca in California State Bar Court in June 2021, which resulted in formal discipline, and (2) that the required medical lien documentation necessary for Bishop to obtain medical treatment had not been transmitted, executed, or returned. (Cross-Compl., ¶ 45.) These allegations lack the requisite specificity clarifying when, how, and by what means these facts should have been (but were not) disclosed to Bishop. (Lazar v. Superior Court (1996) 12 Cal.4th 631, 645.) While Bishop vaguely alleges that the facts were concealed "during the course of representation" and "through ongoing nondisclosure" these facts fail to provide the level of specificity required for pleading fraud. (Cross-Compl.,

¶ 46.) Further, with respect to the undisclosed Bar discipline in particular, Bishop

provides inadequate factual detail regarding the content of the facts that should have been disclosed, such that it is not clear why this fact is material to Bishop's representation in the Underlying Action or how DeLuca's undisclosed Bar discipline was causally related to any specific damages sustained by Bishop.

Bishop

also fails to plead specific facts which support an inference that DeLuca was acting with an intent to defraud Bishop, as opposed to mere negligence. In fact, Bishop does not even plead the ultimate fact that DeLuca intended to defraud his client. (Knutson, *supra*, 25 Cal.App.5th at pp. 1091–1092 [“It is the element of fraudulent intent, or intent to deceive, that distinguishes it from actionable negligent misrepresentation and from nonactionable innocent misrepresentation.”].)

Therefore,

DeLuca's demurrer to the fourth cause of action in the Cross-Complaint is SUSTAINED with LEAVE TO AMEND.

E. 5th Cause of Action:

Declaratory Relief — OVERRULED

Bishop's

declaratory relief claim is sufficiently pled. Bishop is seeking a declaration concerning the parties' respective rights, duties, and obligations arising from the fee agreement and DeLuca's claim for attorney's fees. (Cross-Compl., ¶¶ 52, 55.) While DeLuca argues that this claim for relief is merely duplicative of Bishop's first through fourth causes of action, the Court disagrees. Bishop's declaratory relief claim pertains to DeLuca's ability to recover attorney fees in the Underlying Action and the enforceability of DeLuca's attorney fee lien, whereas Bishop's other substantive claims pertain to the wrongful conduct taken by DeLuca in the course of representing Bishop and will determine whether Bishop is entitled to damages from DeLuca. As made clear from DeLuca's own declaratory relief claim in the Complaint, there exists an “actual, present controversy” regarding the enforceability of DeLuca's attorney fee lien, warranting a judicial determination of the parties' respective rights and obligations. (*City of Cotati v. Cashman* (2002) 29 Cal.4th 69, 80.) Accordingly, Bishop has adequately stated a claim for declaratory relief.

IV. MOTION TO STRIKE — MOOT

DeLuca

moves to strike the allegations and exhibits in the Cross-Complaint which concern his State bar disciplinary charges on the grounds that they are improper, irrelevant, inflammatory, and prejudicial. (Mot., at p. 15.) In response, Bishop argues that these allegations are relevant to whether material information affecting trust, security, and loyalty within the attorney-client relationship was not disclosed to Bishop, which is central to both the fiduciary duty and fraudulent concealment claims in the Cross-Complaint. (Opp., at pp. 17-18; see Cross-Compl., ¶¶ 14, 45-48, Exh. 3.) As the demurrer to both of these causes of action was sustained with leave to amend, the Court finds that this motion to strike has been rendered moot. Bishop will have an opportunity to amend his pleading to clarify why the disciplinary charges, in particular, were material to DeLuca's representation, when these proceedings should have been disclosed, and the scope of the information that Bishop contends should have been disclosed by DeLuca. The Court cannot meaningfully evaluate the relevance of these allegations until an amended pleading is filed.

V. REQUESTS FOR JUDICIAL NOTICE

DeLuca

requests judicial notice of the following documents in connection with his opposition to Bishop and Clay's demurrer:

1. DeLuca's Notice of Attorney Lien
(dated 7/29/2025) (RJN, Exh. 1)

2. Notice of Settlement (filed on
11/25/2025) (RJN, Exh. 2)

3. Order to Show Cause Re: Dismissal
(Settlement) (dated 1/23/2026) (RJN, Exh. 3)

4. Minute Order (dated 5/5/2026)
dismissing the Underlying Action (RJN, Exh. 4)

5. Published Jacobs decision (RJN,
Exh. 5)

6. California State Bar Formal

Opinion No. 2009-177 (RJN, Exh. 6)

First, the

Court takes judicial notice of the existence of Exhibits 1-4 pursuant to Evidence Code section 352, subdivision (d), but not the truth of any factual assertions therein. Second, the Court declines to take judicial notice of the Jacobs decision, finding the request to be superfluous. Third, the Court declines to take judicial notice of the State Bar Formal Opinion. The opinion is only advisory and not binding upon the Court. Evidence Code section 352 does not expressly cover judicial notice of such an opinion.

DeLuca also

requests judicial notice of the following document in connection with his demurrer to the Cross-Complaint:

1. DeLuca's Attorney Profile on the
State Bar of California website

2. Stipulation Re: Facts, Conclusions
of Law and Disposition and Order Approving Private Reproval in State Bar Court
Case No. SBC-21-O-30461 (dated 10/27/2021)

Bishop

objects to the requests. Based on the above ruling, the Court finds it unnecessary to consider this request for judicial notice for the evaluation of this motion.

Defendant Jerome A. Clay, Esq. and Law Office

of Jerome A. Clay to serve notice of ruling. This tentative ruling ("TR") shall be the order of the Court unless changed at the hearing and shall by this reference be incorporated into the Minute Order.